

## MEMORANDUM

**TO:** JRFQ Holdings LLC

**FROM:** Anthony De Yurre and Lauren Kahn

**DATE:** May 2, 2022

**RE:** Land Use and Zoning Analysis: Property located at 350 Greco Avenue, 4521 and 4601 LeJeune Road

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You have requested that we provide a land use and zoning analysis and discussion of the development potential for the property located at 350 Greco Avenue, 4521 and 4601 LeJeune Road (collectively, the “Property”) in the City of Coral Gables, Florida (the “City”). The Property is identified by Miami-Dade Tax Folio Numbers 03-4120-017-2240, 03-4120-017-2230, and 03-4120-017-2220, according to the Property Appraiser’s online records, the relevant excerpt of which is attached as composite **Exhibit A** (the “PA Records”). The Property is approximately 32,091 square feet (0.737 acres) in size.<sup>1</sup> The Property is located south of Greco Avenue, east of LeJeune Road and north of Granello Avenue. The eastern property line of the Property abuts a 20-foot-wide platted public alley. The Property is 100 feet deep as measured from LeJeune Road and approximately 300 feet measured from Greco Avenue to Granello Avenue. The Property is presently vacant.

The Property is located within the jurisdiction of the City of Coral Gables and is therefore subject to the City’s Zoning Code (the “Code”) and the City’s Comprehensive Plan (the “Comprehensive Plan”).

### **A. LAND USE AND ZONING.**

Pursuant to the City’s Future Land Use Map (“FLUM”), the relevant excerpt of which is depicted below as *Figure 1*, the Property is designated Commercial Low-Rise Intensity. This category is oriented to low intensity pedestrian and neighborhood commercial uses, including residential, retail, services, office, and mixed use. The maximum permitted F.A.R.<sup>2</sup> is 3.0, or 3.5 with architectural incentives, which yields a maximum floor area of 96,273 square feet or 112,318 square feet with architectural incentives. The F.A.R. can be further increased by up to 25% as a receiving site of transfer of development rights (“TDR”) pursuant to Section 14-204, for a maximum total F.A.R. of 4.375 and a maximum total 143,941 square feet. Residential units are permitted as part of a mixed-use development with unlimited density due to the Property’s location within

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<sup>1</sup> The Property’s lot area should be verified upon receipt of a survey, as right-of-way dedications and other documents of record are often not reflected on the PA Records. The figures in this memorandum were calculated using the lot area indicated on the PA Records.

<sup>2</sup> F.A.R. excludes off-street parking areas as well as other areas as detailed in the attached **Exhibit F**

the Design & Innovation District. The maximum height permitted within the Commercial Low-Rise Intensity designation is 50 feet in height or with architectural incentives, up to 77 feet (with a maximum of 2 additional floors). If developed pursuant to the Design & Innovation District regulations, a maximum of 97 feet in height with architectural incentives is permitted or 120 feet in height (10 floors) for residential buildings.

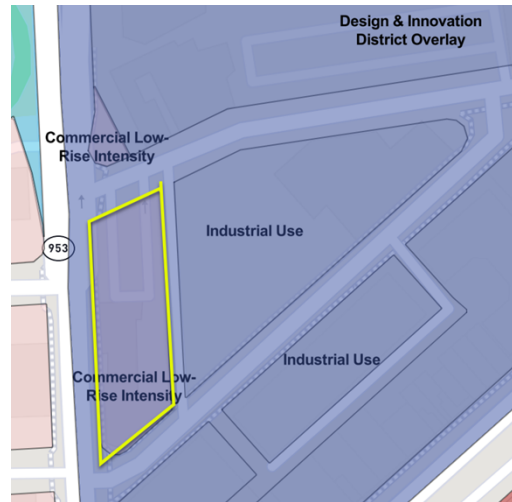


Figure 1. FLUM

Pursuant to the City's Zoning Map, the relevant excerpt of which is depicted below in *Figure 2*, the Property is zoned MX1 and is within the Design & Innovation District Overlay. The MX regulations are attached as **Exhibit B**. All building sites within the MX Districts that exceed 20,000 square feet in lot area require conditional use and approval and are accordingly subject to the conditional use criteria is Section 14.203.8 of the Code, which are attached as **Exhibit C**. Properties zoned MX1 are permitted a maximum of 45 feet in height as of right; or 5 stories and 63.5 feet with Mediterranean Bonus I; or 6 stories and 77 feet in height with Mediterranean Bonus II. MX1-zoned properties have zero setback requirements at the front and side street. MX1 properties require a 5-foot setback at the rear abutting an alley. However, if the alley is vacated, a 10-foot setback is required at the rear. Buildings over 45 feet in height in MX1 are required a minimum 10-foot stepback above 45 feet in height from the front; a minimum 10-foot stepback above 45 feet from the side street; and a minimum 3-foot stepback above 45 feet from a rear abutting alley. If the alley is vacated a 15-foot stepback above 45 feet is required from the rear property line. In MX Districts, pedestrian pass-throughs shall be provided for each 250 linear feet of building frontage. The pass-through shall be a minimum 10 feet in width and include pedestrian amenities and landscape planting.

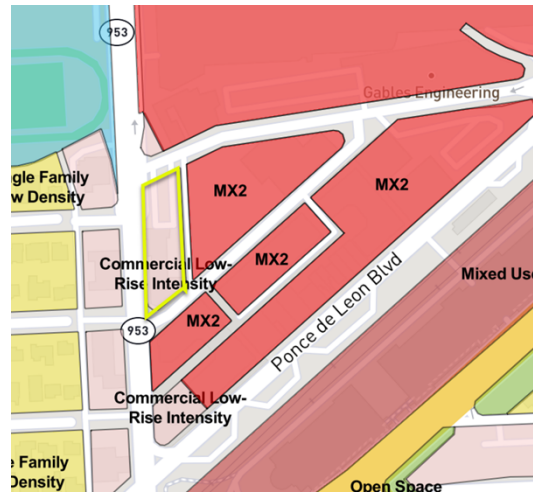


Figure 2. Zoning Map

## **B. DEVELOPMENT POTENTIAL.**

You have indicated that you intend to use the Property for an office and retail/commercial building. Although unlimited density is permitted on the Property, you are not interested in residential uses. Maximizing the height (which would in turn allow maximum F.A.R.) would require compliance with the Mediterranean Bonus standards, which are attached as **Exhibit D**. Below are the different options for development. The parking required for office use, retail sales and services, and restaurants is one parking space per 300 square feet of floor area. As discussed below in sub-section 2, there are some reductions to these parking requirements pursuant to the Design & Innovation District Regulations. Note that each of the options below is subject to the pedestrian pass-through requirement of 10-feet for every 250 linear foot of building frontage due to the fact that the property frontage and likely the building will be over 250 linear feet.

### **1. Rezoning the Property to MX2**

Rezoning of the Property to MX2 would require City Commission approval and may be possible given the abundance of MX2 properties in the area. If the Property were rezoned to MX2, but did not comply with the Design & Innovation District regulations, the maximum height permitted would be 70 feet; or 7 stories and 83.5 feet; or 8 stories and 97 feet. The required setbacks are the same for MX2-zoned properties as MX1-zoned properties. Rezoning to MX2 is the only viable path to a modern non-Mediterranean bonus design with at least 70 feet of height. Given the high parking demands of office and the inefficient with of the property, 70 feet may also not be enough to realize the development potential of the site. An architect must be consulted on these volumetric questions.

### **2. Rezoning the Property to MX2 and complying with the Design & Innovation District Regulations**

If the Property were rezoned to MX2, and complied with the Design & Innovation District regulations, pursuant to Section 2-406 of the Code, which is attached as **Exhibit E**, then a maximum height of 97 feet would be permitted. Note that the Design & Innovation District regulations require compliance with Coral Gables Mediterranean Architecture. Additionally, the City Commission could approve a maximum of 120 feet and 10 stories for residential buildings so long as the increased height does not result in increased density or floor area. The Design & Innovation District regulations require that “50% percent of the linear ground floor building frontage shall be shopfronts and include retail sales and services, office, or restaurant, gallery, and showroom uses or public realm land area (e.g., plazas, courtyards, and other public uses).” Ground floor shopfronts shall have a minimum floor height of 15 feet and a maximum floor height of 25 feet. MX2-zoned properties that comply with the Design & Innovation District regulations are not required to provide off-street parking for buildings 4 stories or less. Furthermore, first-floor showrooms and art galleries within MX2-zoned properties that comply with the Design & Innovation District regulations are exempt from parking requirements.

### 3. Summary of Development Options

The maximum development potential for the Property requires a rezoning to MX2 and compliance with the Design & Innovation District regulations. The different development potential criteria are summarized in the chart below, but an architect should be engaged to determine whether achieving the maximum height, F.A.R., and other zoning criteria, including the required parking, is possible on the uniquely shaped Property.

#### Summary of Development Potential

| Zoning Criteria                      | MX1 (Current Zoning)                                                                                                                                  | MX2                                                                                                                  | MX2 with Design & Innovation District regulations                                                        |
|--------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------|
| F.A.R.                               | <ul style="list-style-type: none"> <li>• 3.0</li> <li>• 3.2 w/ Med Bonus I</li> <li>• 3.5 w/ Med Bonus II</li> <li>• 4.375 w/ TDR transfer</li> </ul> | <ul style="list-style-type: none"> <li>• 3.0</li> <li>• 3.2 w/ Med Bonus I</li> <li>• 3.5 w/ Med Bonus II</li> </ul> | <ul style="list-style-type: none"> <li>• 3.5 w/ Med Bonus II</li> <li>• 4.375 w/ TDR transfer</li> </ul> |
| Minimum Open Space                   | 10%                                                                                                                                                   | 10%                                                                                                                  | 10%                                                                                                      |
| Front Setback/ Stepback <sup>3</sup> | 0 feet with 10-foot stepback                                                                                                                          | 0 feet with 10-foot stepback                                                                                         | 0 feet with 10-foot stepback                                                                             |

<sup>3</sup> All stepbacks are at 45 feet in height.

|                                  |                                                                                                                                               |                                                                                                                                               |                                                                                                                                                              |
|----------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Rear Setback/<br>Stepback        | <ul style="list-style-type: none"> <li>• 5 feet from alley with 3-foot stepback</li> <li>• 10 feet from rear with 10-foot stepback</li> </ul> | <ul style="list-style-type: none"> <li>• 0 feet from alley with 3-foot stepback</li> <li>• 10 feet from rear with 15-foot stepback</li> </ul> | <ul style="list-style-type: none"> <li>• 0 feet from alley</li> <li>• 10 feet from rear</li> </ul>                                                           |
| Side Street Setback/<br>Stepback | 0 feet with 10-foot stepback                                                                                                                  | 0 feet with 10-foot stepback                                                                                                                  | 0 feet with 10-foot stepback                                                                                                                                 |
| Height                           | <ul style="list-style-type: none"> <li>• 45 feet</li> <li>• 5 stories/63.5' w/Med Bonus I</li> <li>• 6 stories/77' w/Med Bonus II</li> </ul>  | <ul style="list-style-type: none"> <li>• 70 feet</li> <li>• 7 stories/83.5' w/Med Bonus I</li> <li>• 8 stories/97' w/Med Bonus II</li> </ul>  | <ul style="list-style-type: none"> <li>• 97 feet w/Med Bonus I and II</li> <li>• 120 feet with City Commission approval for residential buildings</li> </ul> |

### **C. PLAT.**

The Property is composed of twelve platted lots pursuant to the Revised Plat Coral Gables Industrial Section recorded in Plat Book 28, at Page 22 of the Public Records of Miami-Dade County, Florida. A Covenant in Lieu of Unity of Title or a Unity of Title would be appropriate to consolidate the platted lots into a single building site for redevelopment as discussed above.

### **D. IMPACT FEES AND CONCURRENCY.**

The proposed project for the Property will need to meet the concurrency level of service standards for roadways, mass transit, water, sewer, solid waste and flood protection. The pulling of permits for any project on the Property will require the payment of impact fees to both the City and Miami-Dade County. A civil engineer should be engaged to confirm sewer capacity.

### **E. DOCUMENTS OF RECORD.**

Pursuant to the Old Republic National Title Insurance Company Owner's Policy dated November 22, 2021, Policy No: OF6-8979484, the following ordinances, easements and covenants encumber the portion of the Property with the address 350 Greco Avenue<sup>4</sup>:

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<sup>4</sup> We have made public records request from the City of Coral Gables to have the City produce any other documents of consequence regarding the Property which may not be of record and may impact the ability to develop the Property.

- Exceptions 9, 10 and 11. Deed Book 839, Page 106; Deed Book 939, Page 443; Deed Book 939, Page 435 all contain what are referred to as “Merrick Easements,” which were originally reservations of utility easements along side and rear property lines. Many of them have never been utilized, but the City requires letters from each of the applicable utilities indicating that they consent to release of the easements in order to release them. Since the Property will be developed as a single building site, the Merrick Easements will be unnecessary and should be released.
- Exception 12. Ordinance 2021-32 recorded in Official Records Book 32864, Page 3178 requires that 34 public parking spaces, including sufficient disabled parking spaces and 8 electric vehicle charging stations be located on the parcel with address 350 Greco Avenue. Ordinance 2021-32 also required the recording of a restrictive covenant reflecting the conditions of approval.
- Exception 13. Restrictive Covenant recorded in Official Records Book 32864, Page 3188 requires compliance the conditions discussed in Exception 12 above.

Pursuant to the Old Republic National Title Insurance Company Policy Number OXFL-08829206 dated November 14, 2019 the following ordinances, easements and covenants encumber the portion of the Property with address 4521 and 4601 LeJeune Road:

- Exception 3. Utility easements referenced in Paragraph 16 of Warranty Deed and recorded in Deed Book 1304, Page 9, Deed Book 839, Page 106; Deed Book 939, Page 443; Deed Book 939, Page 435 all contain what are referred to as “Merrick Easements,” which were originally reservations of utility easements along side and rear property lines. Many of them have never been utilized, but the City requires letters from each of the applicable utilities indicating that they consent to release of the easements in order to release them. Since the Property will be developed as a single building site, the Merrick Easements will be unnecessary and should be released and replaced with appropriate utility easements.
- Exceptions 4, 5, 7, and 8. Encroachment Covenants recorded in Official Records Book 13383, Page 1361, Book 13470, Page 13, Book 14769, Page 1906, and Book 16272, Page 5458, which are no longer applicable and should be released.
- Exception 6. Quit Claim Deed recorded in Deed Book 3416, Page 94, as well as Resolution No. 3639 recorded in Official Records Book 13676, Page 3708, in which City of Coral Gables, Inc. conveys interest in several alleys including the alley abutting the Property to the City of Coral Gables as a public alley.
- Exception 9. Restrictive Covenant recorded in Official Records Book 31689, Page 4685 prohibits residential units on the Southern Parcel from being rented for terms of more than three months, with the exception of rentals to seniors with further conditions as provided in the Restrictive Covenant.

Additionally, based on the survey, there appears to be a Special Warranty Deed recorded in Book

### **QUALIFICATIONS, LIMITATIONS AND EXCEPTIONS**

The foregoing memorandum is rendered subject to the following:

A. Without an independent investigation, to our knowledge, there are no suits, proceedings, or investigations pending, or to our knowledge threatened, against or affecting the Property.

B. Without an independent investigation, to our knowledge, no judgment, decree or order of any court or governmental or administrative agency has been issued against the Property.

C. We have not made any independent investigation of with respect to environmental matters or regulatory compliance of plans and/or specifications in connection with the issuance of building permits or as to any documents which have not been discovered by us during the course of our review and subject to this review.

D. This memorandum is rendered based on the City of Coral Gables Zoning Code and Florida Statutes as of the date of this memorandum. We assume no responsibility to advise you of changes in the law adopted subsequent to the date of this memorandum and assume no obligation to update or supplement such memorandum to reflect any facts or circumstances that may hereafter come to our attention or any changes in the law that may hereafter occur.

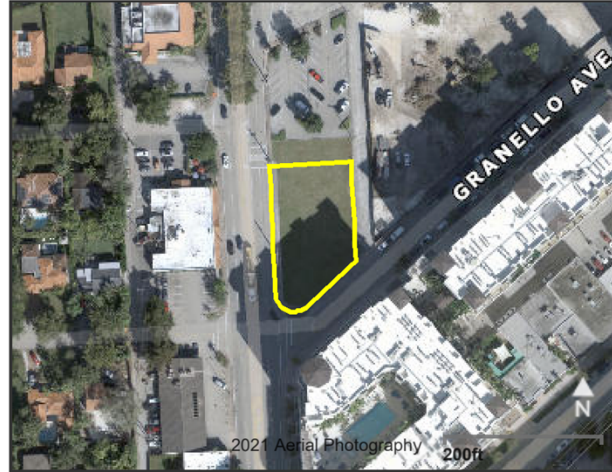
E. This memorandum describes the existing improvements on the Property and the potential redevelopment of the Property and is being furnished for the benefit of JRFQ Holdings LLC. It is not to be relied upon by any other individuals or entities, and no one other than said parties is entitled to rely upon this analysis without our express written permission. This memorandum is not to be quoted in whole or in part or otherwise referred to in connection with any other transaction and may not be filed with any governmental agency (unless required by law or judicial order) or delivered to any other person or entity without the prior written consent of this firm.

F. In our examination, we have assumed the validity and genuineness of all signatures, the authenticity of all documents submitted to us as originals, the conformity with the originals (and the authenticity of such originals) of all documents submitted to us as copies and the accuracy and completeness of all documents submitted to us. As to various factual matters, we have assumed the accuracy and genuineness of and have relied on (i) the representations of the various parties as set forth in the exhibits and (ii) permits, letters, resolutions, ordinances and administrative approvals of public officials contained as part of the exhibits.

**EXHIBIT A****OFFICE OF THE PROPERTY APPRAISER****Summary Report**

Generated On : 4/29/2022

| Property Information |                                                       |
|----------------------|-------------------------------------------------------|
| Folio:               | 03-4120-017-2220                                      |
| Property Address:    | 4601 S LE JEUNE RD<br>Coral Gables, FL 33146-1814     |
| Owner                | 4601 CORAL GABLES PROPERTY LLC                        |
| Mailing Address      | 4225 PONCE DE LEON BLVD<br>CORAL GABLES, FL 33146 USA |
| PA Primary Zone      | 6400 COMMERCIAL - CENTRAL                             |
| Primary Land Use     | 1081 VACANT LAND -<br>COMMERCIAL : VACANT LAND        |
| Beds / Baths / Half  | 0 / 0 / 0                                             |
| Floors               | 0                                                     |
| Living Units         | 0                                                     |
| Actual Area          | 0 Sq.Ft                                               |
| Living Area          | 0 Sq.Ft                                               |
| Adjusted Area        | 0 Sq.Ft                                               |
| Lot Size             | 16,248 Sq.Ft                                          |
| Year Built           | 0                                                     |



| Assessment Information |             |             |             |
|------------------------|-------------|-------------|-------------|
| Year                   | 2021        | 2020        | 2019        |
| Land Value             | \$3,005,880 | \$3,005,880 | \$2,599,680 |
| Building Value         | \$0         | \$0         | \$0         |
| XF Value               | \$0         | \$0         | \$0         |
| Market Value           | \$3,005,880 | \$3,005,880 | \$2,599,680 |
| Assessed Value         | \$3,005,880 | \$3,005,880 | \$2,168,243 |

| Benefits Information                                                                                     |                      |      |      |           |
|----------------------------------------------------------------------------------------------------------|----------------------|------|------|-----------|
| Benefit                                                                                                  | Type                 | 2021 | 2020 | 2019      |
| Non-Homestead Cap                                                                                        | Assessment Reduction |      |      | \$431,437 |
| Note: Not all benefits are applicable to all Taxable Values (i.e. County, School Board, City, Regional). |                      |      |      |           |

| Short Legal Description     |  |
|-----------------------------|--|
| CORAL GABLES INDUSTRIAL SEC |  |
| PB 28-22                    |  |
| LOTS 1 TO 6 INC BLK 16      |  |
| LOT SIZE 16248 SQ FT        |  |
| OR 19006-3556 0300 6        |  |

| Taxable Value Information |             |             |             |
|---------------------------|-------------|-------------|-------------|
|                           | 2021        | 2020        | 2019        |
| County                    |             |             |             |
| Exemption Value           | \$0         | \$0         | \$0         |
| Taxable Value             | \$3,005,880 | \$3,005,880 | \$2,168,243 |
| School Board              |             |             |             |
| Exemption Value           | \$0         | \$0         | \$0         |
| Taxable Value             | \$3,005,880 | \$3,005,880 | \$2,599,680 |
| City                      |             |             |             |
| Exemption Value           | \$0         | \$0         | \$0         |
| Taxable Value             | \$3,005,880 | \$3,005,880 | \$2,168,243 |
| Regional                  |             |             |             |
| Exemption Value           | \$0         | \$0         | \$0         |
| Taxable Value             | \$3,005,880 | \$3,005,880 | \$2,168,243 |

| Sales Information |              |              |                                                  |
|-------------------|--------------|--------------|--------------------------------------------------|
| Previous Sale     | Price        | OR Book-Page | Qualification Description                        |
| 11/13/2019        | \$4,170,000  | 31689-4681   | Qual on DOS, multi-parcel sale                   |
| 02/13/2012        | \$15,847,650 | 27997-3910   | Financial inst or "In Lieu of Forclosure" stated |
| 02/09/2012        | \$100        | 27997-3906   | Corrective, tax or QCD; min consideration        |
| 04/01/2007        | \$24,500,000 | 25571-2759   | Deeds that include more than one parcel          |

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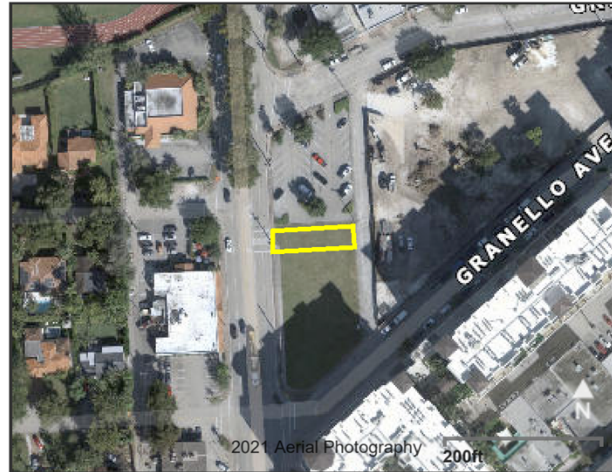


# OFFICE OF THE PROPERTY APPRAISER

## Summary Report

Generated On : 4/29/2022

| Property Information |                                                       |
|----------------------|-------------------------------------------------------|
| Folio:               | 03-4120-017-2230                                      |
| Property Address:    | 4521 S LE JEUNE RD<br>Coral Gables, FL 33146-1812     |
| Owner                | 4601 CORAL GABLES PROPERTY LLC                        |
| Mailing Address      | 4225 PONCE DE LEON BLVD<br>CORAL GABLES, FL 33146 USA |
| PA Primary Zone      | 6400 COMMERCIAL - CENTRAL                             |
| Primary Land Use     | 1081 VACANT LAND -<br>COMMERCIAL : VACANT LAND        |
| Beds / Baths / Half  | 0 / 0 / 0                                             |
| Floors               | 0                                                     |
| Living Units         | 0                                                     |
| Actual Area          | 0 Sq.Ft                                               |
| Living Area          | 0 Sq.Ft                                               |
| Adjusted Area        | 0 Sq.Ft                                               |
| Lot Size             | 2,500 Sq.Ft                                           |
| Year Built           | 0                                                     |



| Assessment Information |           |           |           |
|------------------------|-----------|-----------|-----------|
| Year                   | 2021      | 2020      | 2019      |
| Land Value             | \$462,500 | \$462,500 | \$400,000 |
| Building Value         | \$0       | \$0       | \$0       |
| XF Value               | \$0       | \$0       | \$0       |
| Market Value           | \$462,500 | \$462,500 | \$400,000 |
| Assessed Value         | \$462,500 | \$462,500 | \$333,615 |

| Benefits Information                                                                                     |                      |      |      |          |
|----------------------------------------------------------------------------------------------------------|----------------------|------|------|----------|
| Benefit                                                                                                  | Type                 | 2021 | 2020 | 2019     |
| Non-Homestead Cap                                                                                        | Assessment Reduction |      |      | \$66,385 |
| Note: Not all benefits are applicable to all Taxable Values (i.e. County, School Board, City, Regional). |                      |      |      |          |

| Short Legal Description     |  |
|-----------------------------|--|
| CORAL GABLES INDUSTRIAL SEC |  |
| PB 28-22                    |  |
| LOT 7 BLK 16                |  |
| LOT SIZE 25.000 X 100       |  |
| OR 19328-4844 1000 6        |  |

| Taxable Value Information |           |           |           |
|---------------------------|-----------|-----------|-----------|
|                           | 2021      | 2020      | 2019      |
| County                    |           |           |           |
| Exemption Value           | \$0       | \$0       | \$0       |
| Taxable Value             | \$462,500 | \$462,500 | \$333,615 |
| School Board              |           |           |           |
| Exemption Value           | \$0       | \$0       | \$0       |
| Taxable Value             | \$462,500 | \$462,500 | \$400,000 |
| City                      |           |           |           |
| Exemption Value           | \$0       | \$0       | \$0       |
| Taxable Value             | \$462,500 | \$462,500 | \$333,615 |
| Regional                  |           |           |           |
| Exemption Value           | \$0       | \$0       | \$0       |
| Taxable Value             | \$462,500 | \$462,500 | \$333,615 |

| Sales Information |              |              |                                                   |
|-------------------|--------------|--------------|---------------------------------------------------|
| Previous Sale     | Price        | OR Book-Page | Qualification Description                         |
| 11/13/2019        | \$4,170,000  | 31689-4681   | Qual on DOS, multi-parcel sale                    |
| 02/13/2012        | \$15,847,650 | 27997-3910   | Financial inst or "In Lieu of Foreclosure" stated |
| 02/09/2012        | \$100        | 27997-3906   | Corrective, tax or QCD; min consideration         |
| 04/01/2007        | \$24,500,000 | 25571-2759   | Deeds that include more than one parcel           |

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# OFFICE OF THE PROPERTY APPRAISER

## Summary Report

Generated On : 4/29/2022

| Property Information |                                                         |
|----------------------|---------------------------------------------------------|
| Folio:               | 03-4120-017-2240                                        |
| Property Address:    | 350 GRECO AVE<br>Coral Gables, FL 33146-0000            |
| Owner                | 4601 CORAL GABLES PROPERTY LLC                          |
| Mailing Address      | 2701 S LEJEUNE RD 10TH FL<br>CORAL GABLES, FL 33134 USA |
| PA Primary Zone      | 6400 COMMERCIAL - CENTRAL                               |
| Primary Land Use     | 1081 VACANT LAND -<br>COMMERCIAL : VACANT LAND          |
| Beds / Baths / Half  | 0 / 0 / 0                                               |
| Floors               | 0                                                       |
| Living Units         | 0                                                       |
| Actual Area          | 0 Sq.Ft                                                 |
| Living Area          | 0 Sq.Ft                                                 |
| Adjusted Area        | 0 Sq.Ft                                                 |
| Lot Size             | 13,343 Sq.Ft                                            |
| Year Built           | 0                                                       |



| Assessment Information |             |             |             |
|------------------------|-------------|-------------|-------------|
| Year                   | 2021        | 2020        | 2019        |
| Land Value             | \$2,134,880 | \$2,134,880 | \$2,134,880 |
| Building Value         | \$0         | \$0         | \$0         |
| XF Value               | \$0         | \$0         | \$0         |
| Market Value           | \$2,134,880 | \$2,134,880 | \$2,134,880 |
| Assessed Value         | \$2,134,880 | \$2,134,880 | \$2,127,412 |

| Benefits Information                                                                                     |                      |             |             |             |
|----------------------------------------------------------------------------------------------------------|----------------------|-------------|-------------|-------------|
| Benefit                                                                                                  | Type                 | 2021        | 2020        | 2019        |
| Non-Homestead Cap                                                                                        | Assessment Reduction |             |             | \$7,468     |
| Municipal                                                                                                | Exemption            | \$2,134,880 | \$2,134,880 | \$2,127,412 |
| Note: Not all benefits are applicable to all Taxable Values (i.e. County, School Board, City, Regional). |                      |             |             |             |

| Short Legal Description                                                                      |  |
|----------------------------------------------------------------------------------------------|--|
| CORAL GABLES INDUSTRIAL SEC<br>PB 28-22<br>LOTS 8 THRU 12 INC BLK 16<br>LOT SIZE 13343 SQ FT |  |

| Taxable Value Information |             |             |             |
|---------------------------|-------------|-------------|-------------|
|                           | 2021        | 2020        | 2019        |
| <b>County</b>             |             |             |             |
| Exemption Value           | \$2,134,880 | \$2,134,880 | \$2,127,412 |
| Taxable Value             | \$0         | \$0         | \$0         |
| <b>School Board</b>       |             |             |             |
| Exemption Value           | \$2,134,880 | \$2,134,880 | \$2,134,880 |
| Taxable Value             | \$0         | \$0         | \$0         |
| <b>City</b>               |             |             |             |
| Exemption Value           | \$2,134,880 | \$2,134,880 | \$2,127,412 |
| Taxable Value             | \$0         | \$0         | \$0         |
| <b>Regional</b>           |             |             |             |
| Exemption Value           | \$2,134,880 | \$2,134,880 | \$2,127,412 |
| Taxable Value             | \$0         | \$0         | \$0         |

| Sales Information |             |              |                                           |
|-------------------|-------------|--------------|-------------------------------------------|
| Previous Sale     | Price       | OR Book-Page | Qualification Description                 |
| 11/12/2021        | \$3,525,000 | 32864-3184   | Federal, state or local government agency |

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Version:

**EXHIBIT B**

4/29/22, 11:32 AM

Print

## Section 2-200. Mixed Use Districts (MX).

## Section 2-200. Mixed Use Districts Table

Section 2-200 Mixed Use Districts Table

| Use categories |                                          | MX1   |        | MX2   |        | MX3   |        |        |
|----------------|------------------------------------------|-------|--------|-------|--------|-------|--------|--------|
| A              | Lot occupation                           |       |        |       |        |       |        |        |
| 1              | Building Site Area Minimum (square feet) | 2,500 | 10,000 | 2,500 | 10,000 | 2,500 | 10,000 | 20,000 |
| 2              | Building Site Width Minimum (feet)       | 25    | 100    | 25    | 100    | 25    | 100    | 200    |
| 3              | Ground Coverage Minimum                  | NA    | NA     | NA    | NA     | NA    | NA     | NA     |
| 4              | Open Space Minimum                       | 10%   | 10%    | 10%   | 10%    | 5%    | 10%    | 10%    |
| B              | Density                                  |       |        |       |        |       |        |        |
| 1              | Density (DU/Acre)                        | 125   | 125    | 125   | 125    | 125   | 125    | 125    |
| 2              | Unit Size Minimum (square feet)          | 500   | 500    | 500   | 500    | 500   | 500    | 500    |
| 3              | Floor Area Ratio (FAR)                   | 3.0   | 3.0    | 3.0   | 3.0    | 3.0   | 3.0    | 3.0    |
| 4              | FAR Med. Bonus I                         | 3.2   | 3.2    | 3.2   | 3.2    | 3.2   | 3.2    | 3.2    |
| 5              | FAR Med. Bonus II                        | 3.5   | 3.5    | 3.5   | 3.5    | 3.5   | 3.5    | 3.5    |
| C              | Setback minimums (feet)                  |       |        |       |        |       |        |        |
| 1              | Principal Front                          | 0     | 0      | 0     | 0      | 0     | 0      | 0      |
| 2              | Side Interior                            | 0     | 0      | 0     | 0      | 0     | 0      | 0      |
| 3              | Side Street                              | 0     | 0      | 0     | 0      | 0     | 0      | 0      |
| 4              | Rear                                     | 10    | 10     | 10    | 10     | 10    | 10     | 10     |
| 5              | Rear at Alley                            | 0     | 0      | 0     | 0      | 0     | 0      | 0      |
| 6              | Waterway                                 | 35    | 35     | 35    | 35     | 35    | 35     | 35     |
| D              | Stepback minimums (feet)                 |       |        |       |        |       |        |        |
| 1              | Stepback Front                           | NA    | 10     | 10    | 10     | 10    | 10     | 10     |
| 2              | Stepback Side                            | NA    | 15     | 15    | 15     | 15    | 15     | 15     |
| 3              | Stepback Side Street                     | NA    | 10     | 10    | 10     | 10    | 10     | 10     |

4/29/22, 11:32 AM

Print

| Use categories |                                                | MX1 |                    | MX2                |                    | MX3                |                    |                      |
|----------------|------------------------------------------------|-----|--------------------|--------------------|--------------------|--------------------|--------------------|----------------------|
| 4              | Stepback Rear                                  | NA  | 10                 | 10                 | 10                 | 10                 | 10                 | 10                   |
| 5              | Stepback Rear at Alley                         | NA  | 3                  | 3                  | 3                  | 3                  | 3                  | 3                    |
| <b>E</b>       | <b>Building height maximums (stories/feet)</b> |     |                    |                    |                    |                    |                    |                      |
| 1              | Principal Building                             | 45  | 45                 | 45                 | 70                 | 45                 | 70                 | 150                  |
| 2              | Mediterranean Bonus I                          | NA  | 5 stories<br>/63.5 | 5 stories<br>/63.5 | 7 stories<br>/83.5 | 5 stories<br>/63.5 | 7 stories<br>/83.5 | 14 stories<br>/163.5 |
| 3              | Mediterranean Bonus II                         | NA  | 6 stories<br>/77   | 6 stories<br>/77   | 8 stories<br>/97   | 6 stories<br>/77   | 8 stories<br>/97   | 16 stories<br>/190.5 |

## General Notes:

1. Additional story limitations for Principal Building heights shall apply to properties identified in [Appendix A Site Specifics](#).
2. Additional requirements may apply according to [Section 6-105, Landscape Requirements for Zoning Districts](#) or other regulations in [Article 6](#).
3. Additional requirements and exceptions may apply according to [Section 2-201](#), and [Section 2-400, Overlay Districts](#) or other regulations in [Article 2](#).
4. There shall be no density limitation in the CBD and Design & Innovation District Overlays.
5. Deviation from required setbacks may be permitted pursuant to [Section 5-201, Coral Gables Mediterranean style design standards](#).

## Section 2-201. Mixed Use 1, 2 and 3 (MX1, MX2 and MX3) Districts.

## A. Purpose and applicability:

The purpose of the (MX) Mixed Use Districts is to accommodate various forms and densities of mixed uses, including commercial and residential, to serve the needs of a diverse community, while ensuring that there is a transition to single-family and duplex neighborhoods that protects the integrity of these neighborhoods.

The MXD Districts are intended to provide a continuous, pedestrian-friendly urban environment, bringing together the activities of daily living, and reducing dependence on vehicular mobility. The MX regulations are intended to improve the public realm, and to produce functional and beautiful streets and public open spaces with:

4/29/22, 11:32 AM

Print

1. street level amenities and design elements contributing to the pedestrian experience;
2. pedestrian connectivity augmented in cross block pedestrian passages; and
3. public open spaces that are welcoming, provide a sense of place, and accommodate a range of activities, from walking between destinations, to waiting for transportation, to accommodating social and cultural activities.

The MX Districts include MX1, MX2, and MX3. These are differentiated by their intensity and location. The MX1 District allows a low intensity of development and is located along some of the City's primary corridors, such as Eighth Street, Grand Avenue, Ponce De Leon Boulevard and Giralda Plaza, and often has an adjacency with single-family residential areas. The MX2 District allows a medium intensity of development and is located on Miracle Mile, the Design/Industrial District area, and in the southern and northern-most reaches of the City. The MX3 District allows the highest intensity of development and is located in the City's downtown area, along North Ponce de Leon Boulevard, Biltmore Way, and South Dixie Highway (Route 1).

B. Principal and Accessory uses and structures. The following uses are permitted in the MX districts:

1. Principal uses, buildings or structures as provided in [Section 3-101, Uses Table](#).
2. Accessory uses, buildings or structures as provided in [Section 3-102, Accessory Table](#). Accessory uses, buildings or structures customarily associated with permitted uses within this Zoning District and not listed within the [Section 3-102, Accessory Table](#) may be permitted subject to Development Review Official review and approval.
3. Mix of Uses. The proportionate mix of uses shall be as required by the Comprehensive Plan.
4. For MX1 facing Giralda Plaza and South Ponce de Leon Boulevard, MX2 facing Miracle Mile, and MX3 facing North Ponce de Leon Boulevard:
  - a. A minimum of ninety (90%) percent of the linear ground floor building frontage shall be shopfront and include retail sales and services, or restaurant uses, or courtyard and building entries.
5. For MX2 facing primary streets a minimum of eighty (80%) percent of the linear ground floor building frontage shall include retail sales and services, or restaurant uses, or courtyard and building entries. For MX2 facing a secondary street, a minimum of forty (40%) percent of the linear ground floor building frontage shall be shopfront and include retail sales and service, office, or restaurant uses, or public realm land area (i.e. plazas, courtyards, open space, and other public spaces) uses.
6. For MX1 and MX3 facing a primary street, a minimum of fifty (50%) percent of the linear ground floor building frontage shall include retail sales and services, restaurant or office uses, or public realm land area (e.g., plazas, courtyards, open space, and other public spaces) uses. For MX1 and MX3 facing a secondary street, a minimum of twenty (20%) percent of the linear ground floor frontage facing onto a secondary street shall be a shopfront.

C. Conditional uses. Conditional uses shall be permitted in MX Districts as per [Section 3-101, Principal Uses Table](#), and only if approved under the provisions of [Section 14-203](#), subject to the applicable standards and regulations in this Code.

D. Performance Standards.

1. Building sites. Buildings and structures constructed in MX Districts shall be constructed or erected upon a building site containing at least one (1) platted lot, and such building site shall have a minimum street frontage as per [Section 2-200, Mixed Use Districts Table](#).

4/29/22, 11:32 AM

Print

- a. Buildings and structures on building sites of twenty thousand (20,000) square feet or more, or with street frontage of two hundred (200) feet or more, shall require conditional use review and approval.
  - b. Parcels proposed for development shall be a contiguous unified parcel with sufficient width and depth to accommodate the proposed uses. Public rights-of-way or other public lands shall not be considered as a separation for building sites ten thousand (10,000) square feet or more within the Design & Innovation District Overlay and for building sites of twenty thousand (20,000) square feet or more.
2. Density. Maximum density and floor area ratio (FAR) shall be as per [Section 2-200, Mixed Use Districts Table](#). Each dwelling unit shall have a minimum unit size as per [Section 2-200, Mixed Use Districts Table](#). Additional density regulations are provided in the District Overlays, [Section 2-400](#). The number of permitted units shall be rounded to the nearest whole number.
3. Facing of lots and buildings. Every lot shall be deemed to face the street upon which it abuts; if a lot abuts upon more than one street, it shall be deemed to face both streets; and any building shall face the front of the lot, and be subject to the restrictions governing buildings on each street on which it is deemed to face. The facing of a building site shall be based on the platting of the lots that comprise the building site, except for specific deviations or exceptions prescribed in [Section 14-210.5](#), Facing of lots and principal buildings, and as determined by the Development Review Official upon review of compatibility with the neighborhood.
4. Setback and stepback requirements. To create high quality public spaces and promote neighborhood character, all buildings setbacks and stepbacks shall be as per [Section 2-200, Mixed Use Districts Table](#) and shall meet the following minimum requirements:
  - a. No building or structure, or any part thereof, including porches, projections or terraces shall be erected at a lesser distance from the front, side, or rear line of any building site than the front, side or rear setback and stepback distance, respectively, prescribed and established herein for such building site. Nothing herein shall prohibit a building or structure from having more than the minimum required setbacks and stepback.
  - b. Front setback and stepback.
    - i. Buildings with a height of forty-five (45) feet or less. Zero (0) feet setback required, except as per District Overlays in which, a specific length of build-to-line may be required.
    - ii. Buildings with a height greater than forty-five (45) feet. Zero (0) feet, with a stepback of ten (10) feet above a height of forty-five (45) feet.
    - iii. Additional setback requirements are provided in [Section 4-206, Mandatory Setbacks and Build-to-lines on Certain Streets](#).
  - c. Side setback and stepback.
    - i. Buildings with a height of forty-five (45) feet or less. Zero (0) feet at interior property line, and zero (0) feet abutting a side street.
    - ii. Buildings with a height greater than forty-five (45) feet. Zero (0) feet at interior property line, with an additional stepback of fifteen (15) feet above a height of forty-five (45) feet. Zero (0) feet abutting a side street, with an additional stepback of ten (10) feet above a height of forty-five (45) feet. Zero (0) feet abutting a side alley, with an additional stepback of three (3) feet above a height of forty-five (45) feet.

- iii. Abutting SFR and MF1 properties, the minimum side setback shall be fifteen (15) feet, with additional stepbacks of fifteen (15) feet above a height of forty-five (45) feet.
  - d. Rear setback and stepback.
    - i. Buildings with a height of forty-five (45) feet or less. Ten (10) feet at interior property line. Zero (0) if property line abuts an alley, except MX-1, five (5) feet if property line abuts an alley.
    - ii. Buildings with a height of more than forty-five (45) feet. Ten (10) feet at interior property line, with an additional stepback of fifteen (15) feet above a height of forty-five (45) feet. Zero (0) feet abutting an alley, except MX1, five (5) feet abutting an alley, with an additional stepback of three (3) feet above a height of forty-five (45) feet.
    - iii. Additional building stepbacks may be required by the City Architect and the Board of Architects, to further reduce the potential impacts of the building bulk and mass, and to enable a minimum 40% of the wall area to be glazed openings.
  - e. Cantilevered open balconies may project into required stepback areas within the property line a maximum of six (6) feet.
  - f. Setback from canal waterway, lake, or bay. On all building sites abutting upon a canal, waterway, lake, or bay, the minimum setback from the waterway for all buildings, or portions thereof, designed or used for occupancy for residential purposes shall be thirty-five (35) feet from the canal, waterway, lake, or bay as platted.
5. Setback and stepback requirements of accessory buildings or structures. Except as provided herein, accessory buildings or structures shall be governed by the same minimum setback and stepback requirements as provided for the main or principal building, provided that:
- a. No accessory building or structures may be located in the area between the street and the principal building or any part thereof.
  - b. In no case shall an accessory building or structure be located closer to the front or side street of a lot or building site than the principal building.
  - c. No setbacks shall be required for parking structures and accessory decks that are constructed completely below grade.
6. Ground area coverage. There shall be no minimum or maximum ground area coverage in MX Districts.
7. Open space. Open space requirement shall be as per [Section 2-200, Mixed Use Districts Table](#) and as follows:
- a. Ten (10%) percent of the total area of the building site shall be provided as ground level plazas and courtyards open to the sky and accessible from the front. Arcades and loggias may be considered open space and counted as such toward the open space requirement up to a maximum of seventy-five (75%) percent. The remaining open space area that is open to the sky shall not be less in width or depth than ten (10) feet, and shall have a minimum area of five-hundred (500) square feet.
  - b. For MX1 facing Giralda Plaza, no open space shall be required.
  - c. For MX2 and MX3 building sites that are 10,000 square feet or less, five (5%) percent of the total area of the building site shall be provided as ground level open space, such as arcades and loggias with a minimum vertical volume of thirteen (13) feet, paved with a pervious material.
  - d. Required open space shall be provided at the ground level, shall be accessible and visible to the public, and shall integrate pedestrian features in a coordinated designed with R.O.W. improvements.

- e. Pedestrian pass-throughs, paseos and landscaped pedestrian vias.
  - i. In MX Districts, pedestrian pass-throughs shall be provided for each two-hundred and fifty (250) linear feet of building frontage. The pass-through shall be a minimum ten (10) feet in width, include pedestrian amenities as described below, and landscape planting. In lieu of one (1) pass-through per two hundred and fifty (250) feet of building frontage, two (2) pass-throughs can be combined to provide one (1) twenty (20) foot wide pass-through.
  - ii. In MX3 facing North Ponce de Leon Boulevard, a landscaped pedestrian via shall be provided along the rear of the property and shall provide direct linear connection through the block. The landscaped pedestrian via shall have a minimum width of twenty (20) feet and shall be open to the sky. Residential balconies and stoops may encroach into the via a maximum of six (6) feet. A linear pedestrian path of five (5) to (10) feet in width shall be provided with landscaping on both sides. The via shall be activated through the site plan review process in order to maximize pedestrian activity, landscaping, and promote compatibility with neighboring properties.
- f. The location, scale, and access to open space shall be subject to site plan review.
- g. Planting and other requirements for open space shall be as per [Article 6, Landscape](#).
- 8. Height. The maximum permitted height shall be as per [Section 2-200, Mixed Use Districts Table](#) and as per District Overlays, and as follows:
  - a. MX properties shall have a building height limit of forty-five (45) feet when the lot width is less than one hundred (100) feet. For MX2 and MX3 properties that have a minimum lot width of one hundred (100) feet, the building height limit shall be seventy (70) feet. For MX3 properties that have a minimum lot width of two hundred (200) feet, the building height limit shall be one hundred fifty (150) feet.
  - b. MX properties shall have a height limitation of forty-five (45) feet within one hundred (100) feet (including streets, alleys or waterways) of adjacent, abutting, or contiguous SFR and MF1 properties, as measured from the MX property line, Ten (10) additional feet may be permitted for rooftop architectural elements above the habitable height.
  - c. The maximum permitted height is measured from established grade to the flat roof deck and when there is no flat roof deck, the height shall be to the tie-beam on the top floor of the building. Mechanical equipment areas and decorative roof structures may extend beyond the permitted height a total of ten (10) feet. When more than one (1) of the aforementioned conditions occurs for a specific property, the more restrictive condition shall apply.
- 9. Architecture. Building architecture shall be as per [Article 5, Architecture](#).
  - a. Pursuant to [Section 5-100, Review Standards](#), the Board of Architects shall review applications for aesthetic design and compatibility. The Board of Architects shall have the authority to deny proposed designs that do not comply with aesthetic standards. Applicants are required to submit and describe the proposed architectural style, with adequate documentation of precedents and aesthetic goals. The Board of Architects may approve minor adjustments for aesthetic purposes to the design regulations in order to enhance building design.
  - b. Facades. Facades in excess of one hundred and fifty (150) feet in length shall incorporate design features with the use of the following items:
    - i. Breaks, stepbacks or variations in bulk/massing at an average of one hundred (100) feet intervals.
    - ii. Use of architectural relief and elements.

4/29/22, 11:32 AM

Print

- c. Lighting (building). External illumination and lighting of buildings shall conform to dark skies standards and shall require City Commission approval.
- d. Pedestrian design features for building frontages. On any front property line or primary street where an adjoining pedestrian sidewalk is located, the following design features shall be included at the street level:
  - i. Architectural building design that is compatible with the context and that precludes blank walls.
  - ii. Frequent doors and windows including retail display windows.
  - iii. Landscaping, shading devices and benches.
- e. Pedestrian amenities. Pedestrian amenities shall be provided on both private property and public open spaces, including benches, information kiosks, lighting, bicycle racks, refuse containers, sidewalk pavement treatments, statuary, street crosswalk paver treatments, wall-mounted fountains, water fountains and other similar water features. All pedestrian amenities shall be permanently secured to the ground surface, and shall be consistent in design and from with the applicable City Public Realm Design Manual.
- f. Pedestrian access orientation. All buildings, except accessory buildings, shall have their main pedestrian entrance or entrances oriented towards the front property line and shall have a minimum of one pedestrian entry from each street the property faces. Shopfronts shall have operable doors along their front facades spaced at a minimum average of sixty (60) feet on center.
- g. Transparency. A minimum of sixty (60%) percent and a maximum of ninety (90%) percent of the ground floor shall be transparent, with a minimum of eighty-eight (88%) percent light transmission to allow maximum visibility into the interior of the ground-level space from the public right-of-way and pedestrian areas. Tinting, reflective glass, curtains, blinds, paper, merchandise or displays, or other materials that obstruct visibility into the interior of the ground level space shall not be permitted.
- h. A shopfront may occur at the street-facing edge of the building or it may be set back under or inside an arcade, courtyard, or overhang. If set back, the shopfront windows and doors shall remain publicly accessible and visible from the sidewalk edge. Facing Miracle Mile, Giralda Plaza and Ponce de Leon Boulevard, a minimum of ninety (90%) percent of the linear ground floor of each building shall be a shopfront.
- i. Minimum ground floor height shall be fifteen (15) feet to create high-quality shopfronts. The windowsill height for a fixed shopfront shall be a maximum of two (2) feet above the sidewalk elevation.
- j. Shopfronts may have fixed or operable windows and doors. An operable transparent shopfront may have movable glass doors, such as a bi-fold, horizontal sliding, lift and slide, or swing door to allow maximum openness and circulation during operating hours, but that are closed and secured when the business is closed.
- k. Arcades, loggias, or covered areas shall have a minimum depth of ten (10) feet and may accommodate up to eighty (80%) percent of the entire linear length of the building based upon the site plan review criteria listed herein. Encroachment of the entire length or one-hundred (100%) percent may be requested subject to review and approval at the time of site plan consideration. Limitations of encroachments on corners of buildings may be required to control view corridors and ground floor building bulk and massing. Arcades or loggias are prohibited on Miracle Mile and Giralda Plaza.
- l. Architectural relief and elements. Architectural relief and elements (e.g., windows, cornice lines, and other design features) shall be provided on all sides of buildings and include similar architectural features as

4/29/22, 11:32 AM

Print

those provided on the front façade. No blank walls shall be permitted except for party walls at property lines, and only up to a height of forty-five (45) feet, after which, a stepback is required. Exposed party walls shall also have architectural features to discourage blank walls in the case they remain exposed and visible.

m. LEED certification. All buildings are required to meet the standards of Leadership in Energy and Environmental Design (LEED) criteria specified by the U.S. Green Building Council, or similar rating system. Examples may include the following LEED certification rating systems:

- i. Building Design and Construction (BD+C)
- ii. Neighborhood Development (ND)

10. Parking, garages and driveways. Parking, garages and driveways shall be as per [Article 10, Parking and Access](#).

a. Off-street vehicular areas. The view from the street of all vehicular areas on a building site shall be minimized to ensure that these uses do not detract from the pedestrian scale of the building design and overall walkability of the surrounding area. All off-street vehicle arrival and parking shall occur to the rear or the side of the building.

b. Structured parking.

- i. In the event that structured parking is to be constructed above grade, that portion of the parking garage that is constructed above grade and faces a street shall be screened from street view with shopfronts, lobbies, offices, living units, portions of living units, or other usable building area. Other facades of the garage above the ground level shall be designed and improved so that the use of the building as a garage is not readily apparent, and shall reflect the character and exterior finishes of the building served by the garage, and shall be compatible with buildings that occupy the same street. No portion of a building that is above grade and within twenty (20) feet of the front setback line shall be used for the storage of vehicles or off-street parking.
- ii. Entrances and exits to garage areas. Front vehicular entry gates at garage entries shall be setback a minimum of twenty (20) feet behind the exterior building wall to partially conceal the interior of the garage from street view. The sides, and if necessary the rear of parking structures, shall be screened from view of the street with a combination of walls and landscaping with Board of Architects approval. Overhead doors and parking garage entrances shall not face or be directed towards residential properties or adjacent rights-of-way abutting residentially zoned properties.

c. Driveways, curb cuts, and vehicular use areas.

- i. Where an alley or side street is present, curb cuts, driveways, and access to vehicular areas shall be allowed only from the alley or side street. Where these are not present, the vehicle entry from the front property line shall require City Commission approval.
- ii. To accommodate street trees and minimize sidewalk disruption: driveways and curb cuts shall not exceed twenty-two (22) feet in width in the public right-of-way.
- iii. For MX districts facing Lejeune Road, Ponce de Leon Boulevard, East Ponce de Leon Boulevard, Miracle Mile, Giralda Plaza, Alhambra Circle, Douglas Road, and Red Road, and other primary streets: driveways, curb cuts, vehicular use areas, and loading entries accessed from the street shall not be permitted.

- iv. Porte-cocheres are prohibited at the front of the property and facing any street, and shall be restricted to the interior of the block.
- v. Pavements of driveways and vehicular use areas shall be a minimum of twenty-five (25%) percent permeable pavers.
- d. Off-street loading. Off-street loading shall be as per [Article 10, Parking and Access](#).
  - i. All loading and unloading areas and facilities shall be within fully enclosed areas with overhead doors, accessed only from alleys or side streets. Overhead doors shall remain closed when not in use and after hours.
  - ii. Where loading access is only possible from a street, the entry shall be part of the driveway and curb cut for parking and other vehicular use areas.
  - iii. Curb cuts for loading entrances shall be prohibited on Ponce de Leon Boulevard and East Ponce de Leon Boulevard, Miracle Mile, Giralda Plaza, Alhambra Circle, Lejeune Road, Douglas Road, and Red Road.
- 11. Utilities and services. All utilities and services facilities requirements shall be as per [Section 5-600, Sanitation and Equipment Screening](#), and as follows:
  - a. All utilities on private property shall be installed underground in accordance with the City Code. Properties of 10,000 square feet or more shall bury existing above-ground utilities.
  - b. All utilities and service facilities above ground, on the façade, and on roofs, including mechanical and electrical facilities shall be concealed or screened to hide the facilities. Screening materials may include landscaping, walls, fencing, and other appropriate materials, and shall achieve 100% opacity. The type of screening shall be approved at time of site plan review. Mechanical, electrical and other associated support service areas shall be located entirely within the structure.
  - c. All equipment such as backflow preventers, Siamese connections, and the like, shall be placed within the line of the façade and shall not be in the front setback.
  - d. All equipment such as exhaust fans, air conditioning units, and louvers may only face secondary streets and shall only be placed above the first floor.
  - e. On the roof, a screen wall shall conceal all equipment except antennas from lateral view.
  - f. Refuse and waste disposal facilities shall be enclosed within the building or structure it serves, and reflect the building's architectural character and exterior finishes.

## **EXHIBIT C**

4/29/22, 11:26 AM

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### **Section 14-203. Conditional Uses**

#### **Section 14-203.1. Purpose and applicability.**

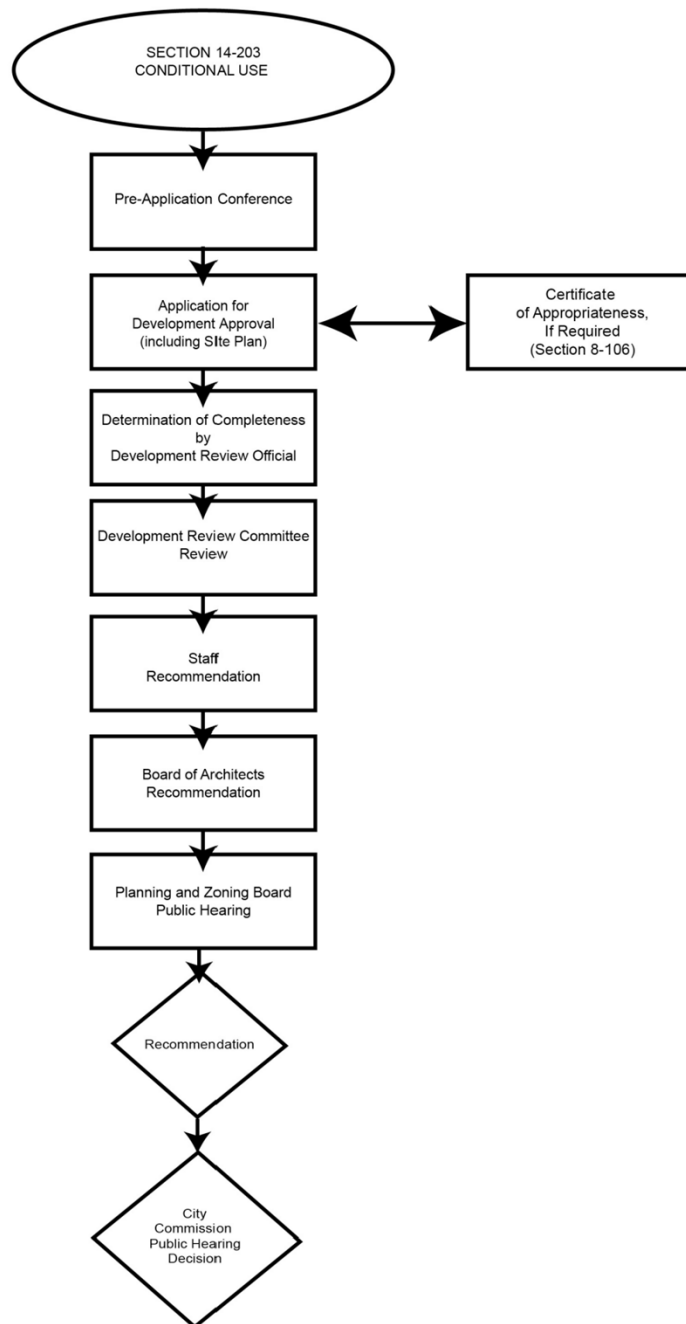
The purpose of providing for conditional uses within each zoning district is to recognize that there are uses which may have beneficial effects and serve important public interests, but which may, but not necessarily, have adverse effects on the environment, particularly residential areas, overburden public services, or change the desired character of an area. Individualized review of these uses is necessary due to the potential individual or cumulative impacts that they may have on the surrounding area or neighborhood. The review process allows the imposition of conditions to mitigate identified concerns or to deny the use if concerns cannot be resolved.

#### **Section 14-203.2. General procedures for conditional uses.**

The following graphic summarizes the procedures required to obtain conditional use approval:

4/29/22, 11:26 AM

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4/29/22, 11:26 AM

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recommend such conditions to the approval that are necessary to ensure compliance with the standards set out in Section [14-203.8](#).

Section 14-203.7. City Commission decision.

The City Commission shall review the application, the recommendations of staff, the Board of Architects and the Planning and Zoning Board, and shall conduct a quasi-judicial public hearing and grant the approval, grant the approval subject to specified conditions or deny the application. The City Commission may attach such conditions to the approval that are necessary to ensure compliance with the standards set out in Section [14-203.8](#).

Section 14-203.8. Standards for review.

The Planning and Zoning Board and the City Commission shall provide findings of fact that a conditional use complies with the following standards and the criteria applicable to each conditional use:

- A. The proposed conditional use is consistent with and furthers the goals, policies and objectives of the Comprehensive Plan and furthers the purposes of these regulations and other City ordinances and actions designed to implement the Plan.
- B. The available use to which the property may be put is appropriate to the property that is subject to the proposed conditional use and compatible with existing and planned uses in the area.
- C. The proposed conditional use does not conflict with the needs and character of the neighborhood and the City.
- D. The proposed conditional use will not adversely or unreasonably affect the use of other property in the area.
- E. The proposed use is compatible with the nature, condition and development of adjacent uses, buildings and structures and will not adversely affect the adjacent uses, buildings or structures.
- F. The parcel proposed for development is adequate in size and shape to accommodate all development features.
- G. The nature of the proposed development is not detrimental to the health, safety and general welfare of the community.
- H. The design of the proposed driveways, circulation patterns and parking is well defined to promote vehicular and pedestrian circulation.
- I. The proposed conditional use satisfies the concurrency standards of Section [14-218](#). and will not adversely burden public facilities, including the traffic-carrying capacities of streets, in an unreasonable or disproportionate manner.

Section 14-203.9. Effect of decision.

Approval of a conditional use shall be deemed to authorize only the particular use for which it is issued and shall entitle the recipient to apply for a certificate of use or building permit or any other approval

4/29/22, 11:26 AM

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Section 14-203.3. Application.

An application for conditional use approval shall be made in writing upon form approved by the City, including a site plan, and shall be accompanied by applicable fees.

Section 14-203.4. Staff review, report and recommendation.

A. City staff shall review the application for conditional use approval in accordance with the provisions of Section 14-202. of these regulations and this Article. In the event that such application involves historic properties, it shall be referred to the Historic Resources Department for review and approval in accordance with Article 6 prior to any further review under the provisions of this Article.

B. Upon completion of review of an application, City staff shall:

1. Provide a report that summarizes the application, including whether the application complies with each of the standards for granting conditional use approval in Section 14-203.8.
2. Provide written recommended findings of fact regarding the standards for granting conditional use approval in Section 14-203.8.
3. Provide a recommendation as to whether the application should be approved, approved with conditions, or denied.
4. Provide the report and recommendation, with a copy to the applicant, to the Planning and Zoning Board for review.
5. Schedule the application for hearing before the Planning and Zoning Board upon completion of the Board of Architect's review.
6. Provide notice of the hearing of a conditional use application before the Planning and Zoning Board in accordance with the provisions of Article 15 of these regulations.
7. Schedule and provide notice before the City Commission of a conditional use application in accordance with the provisions of Article 15 of these regulations.

Section 14-203.5. Board of Architects review and recommendation.

Upon receipt of the recommendation of City staff, the Board of Architects shall review the application and the recommendation of staff to determine if the application is consistent with the standards of these regulations and any design requirements set out in the zoning district in which the parcel is located. The Board of Architects approval is required prior to the Planning and Zoning Board's consideration of an application for conditional use approval.

Section 14-203.6. Planning and Zoning Board recommendation.

The Planning and Zoning Board shall review the application for conditional use approval, consider the recommendations of staff and the Board of Architects, conduct a quasi-judicial public hearing on the application and recommend to the City Commission whether they should grant the approval, grant the approval subject to specified conditions or deny the application. The Planning and Zoning Board may

4/29/22, 11:26 AM

Print

that may be required by these regulations, the City or regional, state or federal agencies. In the event an approval of a conditional use changes the design of the proposed building, final review of the design shall be conducted by the Board of Architects.

**Section 14-203.10. Changes to an Approved Conditional Use.**

- A. Minor revisions. The Development Review Official is authorized to allow minor revisions to an approved conditional use after receipt of comments from the Development Review Committee. A minor revision is one which:
1. Does not affect the conditional use criteria applicable to the conditional use.
  2. Does not change the use.
  3. Does not change a condition of approval.
  4. Does not increase the density of the development.
  5. Does not increase the intensity of the development.
  6. Does not result in a material modification or the cancellation of any condition placed upon the use as originally approved.
  7. Does not add property to the parcel proposed for development.
  8. Does not increase the height of the buildings.
- B. Other revisions. Any other adjustments or changes not specified as "minor" shall be granted only in accordance with the procedures for original approval.
- C. When a conditional use includes site plan approval, revisions to the approved site plan shall be in accordance with Section [14-203.12](#).

**Section 14-203.11. Expiration of approval.**

An application for a building permit shall be made within one (1) year of the date of the conditional use approval, and all required certificates of occupancy shall be obtained within one (1) year of the date of issuance of the initial building permit. Permitted time frames do not change with successive owners and an extension of time may be granted by the Development Review Official for a period not to exceed two (2) years but only within the original period of validity.

**Section 14-203.12. Amendments to an Approved Site Plan.**

Amendments to an approved Site Plan shall be considered as major or minor. The Development Review Official, with recommendations from other departments, as needed, shall determine whether proposed changes are major or minor.

- A. Minor amendments. Minor amendments are changes which do not substantially alter the development features related to an approved site plan, are compatible with the adopted design, and do not exceed the provisions of applicable land use and zoning regulations in terms of land usage, open space, and the physical relationship of elements within the site. Minor amendments shall include small changes in

4/29/22, 11:26 AM

Print

floor area, density, lot coverage, height, setbacks, landscape open space, the location of buildings, parking, or mix of uses, which do not exceed five (5%) percent of that which is shown on the site plan approved by the City Commission at public hearings. Such minor amendment shall be reviewed by the Development Review Official and approved administratively by the Planning Director.

- B. Major amendments. Major amendments represent substantial deviations from the site plan approved by the City Commission. Major amendments shall include any increases in floor area, density, and habitable height. Major amendments shall also include significant changes in lot coverage, setbacks, open space, location of buildings which exceed five (5%) percent of that which is shown on the approved site plan by the City Commission at public hearings. Requests for major amendments shall be subject to the review and approval process set forth in Section [14-203](#) and may be made no more than once (1) per twelve (12) month period.

## **EXHIBIT D**

4/29/22, 11:37 AM

Print

### **Section 5-200. Mediterranean Standards**

#### **Section 5-201. Coral Gables Mediterranean style design standards.**

The Coral Gables Mediterranean style design standards incorporate a basic required standard (Table 1), and two additional levels of standards (Tables 2 and 3).

#### **A. Purpose and applicability.**

##### **1. Purpose.**

- a. Provide bonuses and incentives to property owners to encourage and expand the creative use of the various architectural styles in association with promoting public realm improvements.
- b. Provide for a two level bonus program that provides amenities and features typically provided in Mediterranean Style buildings.
- c. Provide additional bonuses for "Coral Gables Mediterranean Architecture" design to continue to support George Merrick's vision consistent with the established historic building fabric of the City.
- d. Enhance the image of the City by providing a visual linkage between contemporary development and the City's unique historic thematic appearance.
- e. Promote an assortment of street level public realm and pedestrian amenities in exchange for increases in building height, residential density, and floor area ratio granted via a discretionary review process.
- f. Provide for the ability to reduce setbacks and encroachment into the public rights-of-way with public open space improvements.
- g. Promote and require architectural and design elements focused to a pedestrian scale.
- h. Encourage landmark opportunities, including physically defined squares; plazas; urban passageways; parks; public open spaces; and, places of public assembly and social activity for social, cultural and religious activities.
- i. Provide a strong emphasis on aesthetics and architectural design with these regulations and the planned mixing of uses to establish identity, diversity and focus to promote a pedestrian friendly environment. This can be accomplished by the following:
  - i. Utilization of a variety of architectural attributes and street level amenities to create a sense of place, including the spatial relationship of buildings and the characteristics created to ensure attractive and functional areas.
  - ii. Integration of street level plazas, courtyards, opens space and public gathering areas including the creation and preservation of corridors, vistas and landmark features.

2. Zoning district applicability. These regulations are available for new construction, additions, restorations or renovations of existing buildings using all types of architecture styles as described herein provided such property is located within the Multi-Family-2 (MF2), Multi-Family-3 (MF3), Multi-Family-4 (MF4), Mixed-Use-1 (MX1), Mixed-Use-2 (MX2), Mixed-Use-3 (MX3), except as otherwise provided herein.

3. Site Specific Zoning Regulations and Mediterranean Bonus. Coral Gables Mediterranean Style Design Standards bonuses and/or incentives as provided for in this Section may be awarded as supplemental (additional) intensity/density or the reduction of existing limitations as assigned in "Appendix A Site Specific Zoning Regulations." These supplemental (additional) bonuses or incentives or both shall be evaluated pursuant to the applicable development standards included in Tables 1, 2, and 3 of Section [5-201](#).

4/29/22, 11:37 AM

Print

4. In the MF3 and MF4 Districts, all development shall comply with the provisions for residential uses which are set out in Table 1, and five (5) of ten (10) of the standards in Table 2; however, the bonus heights shall not apply to MF3.
5. Coral Gables Mediterranean Architectural Design. Applications for new construction and additions restorations and/or renovations of existing buildings, as Coral Gables Mediterranean Architecture may secure bonuses as provided herein.
6. Review and authority.
  - a. The Board of Architects shall be the responsible City review Board on this Article. The Board of Architects may grant approval of all the provisions of this Article unless noted otherwise within these provisions. The Board of Architects shall review all applications for compliance of the provisions of this Article and if the Board of Architects deems an application does not satisfy the provisions the Board shall not award the bonuses. The Board of Architects in its review may complete either of the following:
    - i. Approve the application;
    - ii. Approve the application with modifications;
    - iii. Defer the application and request the applicant redesign the application and resubmit the application to satisfy the provisions of this Article; or
    - iv. Deny the application.
  - b. Staff review. The City Architect shall review and provide a recommendation to the Board of Architects advising of compliance of all provisions contained within this Article.
  - c. New construction applications. The Board of Architects shall not grant any development bonus for new construction unless the application satisfies the provisions in Table 1, Required Standards. The Board of Architects may grant the development bonuses provided in this Section provided that the Board of Architects in its discretion determines that the application complies with all the standards for the development bonus or bonuses.
  - d. Additions, restorations and/or renovations of existing buildings. The Board of Architects may grant a development bonus for the Coral Gables Mediterranean Style Design as an addition, restoration and/or renovation of an existing building provided that the Board of Architects in its discretion determines that the application satisfies the standards. The City Architect shall provide a recommendation to the Board of Architects whether to grant bonuses for the entire building or only the proposed area of the addition, restoration and/or renovation. The Board of Architects shall have final determination as to the amount of bonus granted. No building permit for an addition, restoration and/or renovations of an existing building shall be granted by the Development Services Department unless the Board of Architects in its discretion determines that the building(s) will continue to satisfy all previously approved conditions of approval granting that bonus and the provisions of this Article.
7. Special location site plan review. Properties in the MF2, MF3, MF4, MX1, MX2 and MX3 Districts which are adjacent to or across public rights-of-way or waterways from an SFR District or MF1 District shall comply with the following requirements to secure bonuses:
  - a. Height limitations. Limited to a maximum height of three-and-one-half (3½) stories/forty-five (45) feet.
  - b. Review process. The review process shall be as follows:
    - i. Submit an application and secure Board of Architects preliminary review and approval.
    - ii. Submit an application with the Planning and Zoning Division for special locational site plan review.

- iii. Secure special locational site plan review and recommendation for approval from the Planning and Zoning Board and approval from the City Commission.
    - iv. Secure Board of Architects final review and approval for architecture prior to issuance of a building permit.
  - c. Review criterion. Applications considered pursuant to these regulations must demonstrate that they have satisfied all of the below listed criterion. The Planning and Zoning Division shall evaluate the application with reference to each of the below criteria and provide a recommendation to the Planning and Zoning Board and City Commission. The Planning and Zoning Division, Planning and Zoning Board and City Commission, after notice in accordance with the provisions of [Article 15](#) shall make specific findings of fact that all of the below listed criterion are satisfied. The criterion is as follows:
    - i. The extent to which the proposed plan departs from the zoning and subdivision regulations otherwise applicable to the subject property, including but not limited to density, size, area, bulk and use, and the reasons why such departures are or are not deemed to be in the public interest.
    - ii. The physical design of the site plan and the manner in which said design does or does not make adequate provision for public services, parking, provide adequate control over vehicular traffic, provide for and protect designated public open space areas, and further the amenities of light and air, recreation and visual enjoyment.
    - iii. The compatibility of the proposed building with reference to building height, bulk, and mass with the contiguous and adjacent properties.
    - iv. The conformity of the proposed site plan with the Goals, Objectives and Policies of the Comprehensive Plan (CP).
    - v. That the site plan and associated improvements provides public realm improvements, public open space, and pedestrian amenities for the public benefit.
    - vi. Those actions, designs, construction or other solutions of the site plan if not literally in accord with these special regulations, satisfy public purposes and provide a public benefit to at least an equivalent degree.
  - d. Approval. Approval if granted by the City Commission shall be in Resolution form.
8. Additional Requirements.
- a. Designated historic landmarks. Pursuant to Section [8-100](#), all plans affecting designated historic landmarks must receive a Certificate of Appropriateness from the Historic Preservation Board prior to submittal to the Board of Architects. Bonuses shall not be awarded for development on property that is historically designated where a Certificate of Appropriateness has been denied.
  - b. Supplemental approval provisions. Applicants, property owners, successors or assigns may be required to provide agreements, covenants, contracts, deed restrictions or sureties as a part of the approval granted which may include the following:
    - i. Undertaking of all conditions in accordance with the approved application.
    - ii. Bind all development successors or assigns in title to any conditions and commitments made of these provisions and approved application.
    - iii. Provide for the financial responsibility to continuing the operation and maintenance of the public open space areas, public realm, pedestrian amenities, functions and facilities that are provided, at the

4/29/22, 11:37 AM

Print

expense of the designated property owner, property owners association, or other ownership type, as applicable.

B. Development bonus standards.

1. Required standards. Applications shall be required to satisfy all of the requirements of Articles 2 and 3 and in Table 1, "Required Standards" in order to secure bonuses based upon the applicable residential, and MX districts designations.

| <i>Table 1. Required standards</i> |                    |                  |                                                         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
|------------------------------------|--------------------|------------------|---------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <i>Reference Number</i>            | <i>Residential</i> | <i>Mixed Use</i> | <i>Type</i>                                             | <i>Requirements</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 1.                                 | ✓                  | ✓                | Architectural elements on building facades.             | Similar exterior architectural relief elements shall be provided on all sides of all buildings. No blank walls shall be permitted unless required pursuant to applicable City, State and Federal requirements (e.g., Fire and Life Safety Code, or other applicable code).<br>Parking garages shall include exterior architectural treatments compatible with buildings or structures that occupy the same property and/or street.                                                                                                                                                                                                                                                                                                                                                          |
| 2.                                 |                    | ✓                | Architectural relief elements at street level.          | On any building facades fronting streets, where an adjoining pedestrian sidewalk is located, one (1) or more of the following design features shall be included at the street level: <ol style="list-style-type: none"> <li>a. Display windows or retail display area;</li> <li>b. Landscaping; and/or</li> <li>c. Architectural relief elements or ornamentation.</li> </ol>                                                                                                                                                                                                                                                                                                                                                                                                               |
| 3.                                 | ✓                  | ✓                | Architectural elements located on the top of buildings. | Exclusion from height. The following shall be excluded from computation of building height in MX Districts: <ol style="list-style-type: none"> <li>a. Air-conditioning equipment room.</li> <li>b. Elevator shafts.</li> <li>c. Elevator mechanical equipment rooms.</li> <li>d. Parapets.</li> </ol> Roof structures used only for ornamental and aesthetic purposes not exceeding a combined area of twenty-five (25%) percent of the floor area immediately below. Such exclusion shall be subject to the provisions that no such structure shall exceed a height of more than twenty-five (25) feet above the roof, except for commercial buildings in the Central Business District (CBD) where no such structure shall exceed one-third (1/3) of the allowable total building height. |
| 4.                                 | ✓                  | ✓                | Bicycle storage.                                        | To encourage the use of bicycles, bicycle storage facilities (racks) shall be provided. A minimum of five (5) bicycle storage spaces shall be provided for each two hundred and fifty (250) parking spaces or fraction thereof.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 5.                                 | ✓                  | ✓                | Building                                                | Facades in excess of one hundred and fifty (150) feet in length shall                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |

4/29/22, 11:37 AM

Print

|     |   |   |                                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
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|     |   |   | facades.                            | incorporate vertical breaks, stepbacks or variations in bulk/massing at a minimum of one hundred (100) foot intervals.                                                                                                                                                                                                                                                                                                                                                                                            |
| 6.  | ✓ | ✓ | Building lot coverage.              | No minimum or maximum building lot or ground coverage is required.                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 7.  | ✓ | ✓ | Drive through facilities.           | Drive through facilities including banking facilities, restaurants, pharmacies, dry cleaners, or other drive-through businesses are prohibited access to/from Ponce de Leon Boulevard from S.W. 8 <sup>th</sup> Street to Bird Road, Miracle Mile from Douglas Avenue to LeJeune Road, and Alhambra Circle from Douglas Avenue to LeJeune Road.                                                                                                                                                                   |
| 8.  | ✓ | ✓ | Landscape open space area.          | Each property shall provide the following minimum ground-level landscape open area (percentage based upon total lot area):<br>a. Five (5%) percent for nonresidential properties;<br>b. Ten (10%) percent for mixed use properties; and<br>c. Twenty-five (25%) percent for residential properties.<br><br>The total area shall be based upon the total lot area. This landscape area can be provided at street level, within the public right-of-way, planter boxes, planters, and other ground-floor locations. |
| 9.  | ✓ | ✓ | Lighting, street.                   | Street lighting shall be provided and located on all streets/rights-of-way. The type of fixture shall be the approved City of Coral Gables light fixture. The location, spacing, and other specifications shall be subject to review and approval by the Department of Public Works.                                                                                                                                                                                                                              |
| 10. | ✓ | ✓ | Parking garages.                    | Ground floor parking as a part of a multi-use building shall not front on a primary street. ADA parking is permitted on the ground floor. Ground floor parking is permitted on secondary/side streets and shall be fully enclosed within the structure and/or shall be surrounded by retail uses and/or residential units. Ground floor parking is permitted on alley frontages. Parking facilities shall strive to accommodate pedestrian access to all adjacent street(s) and alleys.                           |
| 11. | ✓ | ✓ | Porte-cocheres.                     | Porte-cocheres are prohibited access to/from Ponce de Leon Boulevard from S.W. 8 <sup>th</sup> Street to Bird Road, Miracle Mile from Douglas Avenue to LeJeune Road, and Alhambra Circle from Douglas Avenue to LeJeune Road.                                                                                                                                                                                                                                                                                    |
| 12. |   | ✓ | Sidewalks/ pedestrian access.       | All buildings, except accessory buildings, shall have their main pedestrian entrances oriented towards adjoining streets. Pedestrian pathways or sidewalks shall be provided from all pedestrian access points and shall connect to one another to form a continuous pedestrian network from buildings, parking facilities, parking garages entrances, and other structures. Wherever possible pathways shall be separated from vehicular traffic.                                                                |
| 13. | ✓ | ✓ | Soil, structural.                   | Structural soil shall be utilized within all rights-of-way for all street level planting areas with root barriers approved by the Public Works Landscape Division.                                                                                                                                                                                                                                                                                                                                                |
| 14. | ✓ | ✓ | Windows on Mediterranean buildings. | Mediterranean buildings shall provide a minimum window casing depth of four (4) inches as measured from the face of the building.                                                                                                                                                                                                                                                                                                                                                                                 |

C. Level 1 bonus Standards for all types of architectural design. Bonuses are available up to a maximum of 0.2 floor area ratio and up to a maximum of one (1) story for all types of architectural designs of buildings. The allowable stories are subject to the subject property applicable CP Map designation and the height is regulated by the Zoning Code. The allowable stories and height are as follows:

| District Designations           | Building Site Area Minimum (square feet) | Additional stories/feet available for all types of architectural design |
|---------------------------------|------------------------------------------|-------------------------------------------------------------------------|
| Residential Uses (Multi Family) |                                          |                                                                         |
| MF2                             | 5,000                                    | + 1 story /13.5 feet = 5 stories / 63.5 feet                            |
|                                 | 10,000                                   | + 1 story /13.5 feet = 7 stories / 83.5 feet                            |
| MF4                             | 10,000                                   | + 1 story /13.5 feet = 14 stories /163.5 feet                           |
| Mixed Uses                      |                                          |                                                                         |
| MX1                             | 10,000                                   | + 1 story /13.5 feet = 5 stories / 63.5 feet                            |
| MX2                             | 2,500                                    | + 1 story /13.5 feet = 5 stories / 63.5 feet                            |
|                                 | 10,000                                   | + 1 story /13.5 feet = 7 stories / 83.5 feet                            |
| MX3                             | 2,500                                    | + 1 story /13.5 feet = 5 stories / 63.5 feet                            |
|                                 | 10,000                                   | + 1 story /13.5 feet = 7 stories / 83.5 feet                            |
|                                 | 20,000                                   | + 1 story /13.5 feet = 14 stories /163.5 feet                           |

1. All applications desiring bonuses shall meet the minimum requirements of Table 2 to secure a bonus under these provisions.
2. The Board of Architects shall review all applications for compliance of the provisions of Table 2 and if the Board of Architects deems an application does not satisfy the provisions the Board of Architects shall not award the bonus. The bonuses are awarded based upon the Board of Architects determination that the application satisfies the following qualifications of Table 2:
  - a. Residential uses (MF2, MF3 and MF4 District) shall satisfy a minimum of six (6) of the twelve (12) qualifications in Table 2.
  - b. Mixed Use Districts (MX1, MX2 and MX3 Districts) shall satisfy a minimum of eight (8) of the twelve (12) qualifications in Table 2.

4/29/22, 11:37 AM

Print

| <i>Reference Number</i> | <i>Residential</i> | <i>Mixed Use</i> | <i>Type</i>                             | <i>Qualifications</i>                                                                                                                                                                                                                                                                                                                                                                                                                                             |
|-------------------------|--------------------|------------------|-----------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1.                      | ✓                  | ✓                | Arcades and/or loggias.                 | Arcades, loggias or covered areas constructed adjacent, parallel, or perpendicular to building to provide cover and protection from the elements for pedestrian passageways, sidewalks, and other walkways thereby promoting pedestrian passage/use. Limitations of encroachments on corners of buildings may be required to control view corridors and ground stories building bulk and massing. Awnings or other similar items do not satisfy these provisions. |
| 2.                      | ✓                  | ✓                | Building rooflines.                     | Incorporation of horizontal and vertical changes in the building roofline.                                                                                                                                                                                                                                                                                                                                                                                        |
| 3.                      | ✓                  | ✓                | Building stepbacks.                     | Stepbacks on building facades of the building base, middle and/or top facade to further reduce the potential impacts of the building bulk and mass.                                                                                                                                                                                                                                                                                                               |
| 4.                      | ✓                  | ✓                | Building towers.                        | The use of towers or similar masses to reduce the mass and bulk of buildings.                                                                                                                                                                                                                                                                                                                                                                                     |
| 5.                      | ✓                  | ✓                | Driveways.                              | Consolidation of vehicular entrances for drive-through facilities, garage entrances, service bays and loading/unloading facilities into one (1) curb cut per street to reduce the amount of vehicular penetration into pedestrian sidewalks and adjoining rights-of-way.                                                                                                                                                                                          |
| 6.                      | ✓                  | ✓                | Lighting of landscaping.                | Uplighting of landscaping within and adjacent to pedestrian areas (e.g., sidewalks, plazas, open spaces, and other public spaces).                                                                                                                                                                                                                                                                                                                                |
| 7.                      | ✓                  | ✓                | Materials on exterior building facades. | The use of natural materials shall be incorporated into the base of the building on exterior surfaces of building. This includes the following: marble, granite, keystone, and other types of natural stone.                                                                                                                                                                                                                                                      |
| 8.                      |                    | ✓                | Overhead doors.                         | If overhead doors are utilized, the doors are not directed towards residentially zoned properties.                                                                                                                                                                                                                                                                                                                                                                |
| 9.                      | ✓                  | ✓                | Paver treatments.                       | <p>Inclusion of paver treatments in all of the following locations:</p> <ul style="list-style-type: none"> <li>a. Driveway entrances minimum of ten (10%) percent of total paving surface.</li> <li>b. Sidewalks. Minimum of twenty-five (25%) percent of total ground level paving surface.</li> </ul> <p>The type of paver shall be subject to Public Works Department review and approval. Poured concrete color shall be Coral Gables Beige.</p>              |
| 10.                     | ✓                  | ✓                | Pedestrian amenities.                   | <p>Pedestrian amenities on both private property and/or public open spaces including a minimum of four (4) of the following:</p> <ul style="list-style-type: none"> <li>a. Benches.</li> <li>b. Expanded sidewalk widths beyond the property line.</li> </ul>                                                                                                                                                                                                     |

4/29/22, 11:37 AM

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|-----|---|---|-------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|     |   |   |                                                                                     | <p>c. Freestanding information kiosk (no advertising shall be permitted).</p> <p>d. Planter boxes.</p> <p>e. Refuse containers.</p> <p>f. Public art.</p> <p>g. Water features, fountains and other similar water features. Ground and/or wall mounted.</p> <p>Above amenities shall be consistent in design and form with the City of Coral Gables Master Streetscape Plan.</p>                                                                                                                            |
| 11. |   | ✓ | Pedestrian pass-throughs/ paseos on properties contiguous to alleys and/or streets. | <p>Pedestrian pass-throughs provided for each two hundred and fifty (250) linear feet or fraction thereof of building frontage provided on properties contiguous to alleys and/or streets or other publicly owned properties. Buildings less than two hundred and fifty (250) feet in size shall provide a minimum of one (1) pass through. The pass-throughs shall be subject to the following:</p> <p>a. Minimum of ten (10) feet in width.</p> <p>b. Include pedestrian amenities as defined herein.</p> |
| 12. | ✓ | ✓ | Underground parking.                                                                | <p>The use of underground (below grade level) parking, equal in floor area of a minimum of seventy-five (75%) percent of the total surface lot area. Underground parking shall be located entirely below the established grade as measured from the top of the supporting structure and includes all areas utilized for the storage of vehicles and associated a circulation features.</p>                                                                                                                  |

E. Level 2 bonuses – Bonuses for Coral Gables Mediterranean Architectural Design. An additional bonus up to 0.3 floor area ratio and one (1) story or two (2) stories shall be permitted if Coral Gables Mediterranean Architectural Design is utilized. The maximum available number of stories are based upon the CP Map designation and permitted building height as outlined in the Zoning Code subject to the designation of the subject property.

| <i>District Designations</i>          | <i>Building Site Area Minimum</i> | <i>Allowable maximum feet</i> | <i>Maximum total feet available pursuant to Article 5-201</i> | <i>Additional feet available/maximum feet for Coral Gables Mediterranean Architectural Style</i> |
|---------------------------------------|-----------------------------------|-------------------------------|---------------------------------------------------------------|--------------------------------------------------------------------------------------------------|
| <b>Residential Use (Multi Family)</b> |                                   |                               |                                                               |                                                                                                  |
| MF2                                   | 5,000                             | 50 feet                       | 63.5 feet                                                     | 63.5 feet + 13.5 feet = 77 feet                                                                  |
|                                       | 10,000                            | 70 feet                       | 83.5 feet                                                     | 83.5 feet + 13.5 feet = 97 feet / 100 feet (RIR)                                                 |
| MF4                                   | 10,000                            | 150 feet                      | 163.5 feet                                                    | 163.5 feet + 27 feet = 190.5 feet                                                                |

4/29/22, 11:37 AM

Print

| Mixed Use |        |          |            |                                   |
|-----------|--------|----------|------------|-----------------------------------|
| MX1       | 10,000 | 50 feet  | 63.5 feet  | 63.5 feet + 13.5 feet = 77 feet   |
| MX2       | 2,500  | 50 feet  | 63.5 feet  | 63.5 feet + 13.5 feet = 77 feet   |
|           | 10,000 | 70 feet  | 83.5 feet  | 83.5 feet + 13.5 feet = 97 feet   |
| MX3       | 2,500  | 50 feet  | 63.5 feet  | 63.5 feet + 13.5 feet = 77 feet   |
|           | 10,000 | 70 feet  | 83.5 feet  | 83.5 feet + 13.5 feet = 97 feet   |
|           | 20,000 | 150 feet | 163.5 feet | 163.5 feet + 27 feet = 190.5 feet |

F. The Board of Architects shall review all applications for compliance of the provisions of Section 5-202 and if the Board of Architects deems an application does not satisfy the provisions it shall not award the Coral Gables Mediterranean Architectural Design bonus. The bonuses are awarded based upon the Board of Architects determination that the application satisfies the Coral Gables Mediterranean Architectural Design provisions in Section 5-202.

G. Total available bonus provisions within level 1 and 2. Bonuses are available in two levels as provided in above Section C and D. The level 1 and 2 bonuses available shall only be granted if an application satisfies Table 1, Required Standards. Bonuses may be granted for only level 1 or bonuses can be granted cumulatively including level 1 and 2 bonuses. To secure Mediterranean Architecture bonuses, Level 2, all provisions in the above Sections C and D and Section 5-202 shall be satisfied.

H. Required standards. Bonuses may be granted for only level 1 or bonuses can be granted cumulatively including level 1 and 2 bonuses. To secure Mediterranean Architecture bonuses, Level 2, all provisions in this Section shall be satisfied.

I. Option standards. Applications for bonuses may also utilize the following development options for Level 1 and/or Level 2 bonuses as is provided in Table 3:

| Table 3. Other development options |             |           |                              |                                                                                                                                                                                                                                                                                                                       |
|------------------------------------|-------------|-----------|------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Number                             | Residential | Mixed Use | Type                         | Options                                                                                                                                                                                                                                                                                                               |
| 1.                                 |             | ✓         | Building setback reductions. | Reduction in setbacks. Setbacks may be reduced to zero (0) foot setbacks on all property lines subject to the following standards:<br>a. Minimum open space. A minimum of twenty-five (25%) percent of the total ground stories square footage received from the setback reduction is provided as publicly accessible |

4/29/22, 11:37 AM

Print

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|----|--|---|--------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|    |  |   |                                                                                                        | <p>street level open space and landscape area on private property.</p> <p>b. The minimum square footage of allowable ground stories open space (i.e. plazas) shall be four hundred (400) square feet.</p> <p>c. Types of open space. Types of open space shall be in the form of courtyards, plazas, arcades/loggias, and pedestrian pass-throughs adjacent/contiguous to the adjacent rights-of-way.</p> <p>d. Applicants, property owners, successors or assigns desiring to develop pursuant to these regulations may not seek a variance for relief or reduction in building setbacks. Reductions in setbacks are only permitted subject to these regulations.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 2. |  | ✓ | Encroachment or loggias and/or arcades located as a part of an adjacent building within rights-of-way. | <p>Encroachments up to a maximum of ten (10) feet into public rights-of-way (not including alleys) may be permitted for the placement of a street level pedestrian arcade/loggia as a part of an adjacent building subject shall satisfy the following regulations:</p> <p>a. Encroachment. The total amount of encroachment shall be evaluated based upon the total width of the contiguous rights-of-way. Rights-of-way less than sixty (60) feet or less may be approved for less than the maximum ten (10) feet.</p> <p>b. Minimum percentage of open space. A minimum fifty (50%) percent of the total ground stories square footage encroachment requested must be provided as publicly accessible open space and landscape area on private property. The open space is subject to the following:</p> <ul style="list-style-type: none"> <li>● Types of open space. Types of open space shall be in the form of open arcades/loggia, courtyards, plazas, pedestrian pass-throughs or open atriums adjacent/contiguous to the adjacent rights-of-way.</li> <li>● Minimum area. Minimum square footage of allowable open space shall be five hundred (500) square feet.</li> <li>● Landscape. Include both hard and softscape landscape improvements and pedestrian amenities as defined herein.</li> <li>● Vertical volume. As a minimum include a vertical volume of space equal from street level to the first story's height or eighteen (18) feet, whichever is greater. Increase/decrease in height may be reviewed/approved as a part of approval.</li> </ul> |

4/29/22, 11:37 AM

Print

- Maximum arcade/loggia lengths. Encroachments of up to eighty (80%) percent of the entire linear length of the building are permitted. Encroachment of the entire length may be requested subject to review and approval at the time of site plan review. Limitations of encroachments on corners of buildings may be required to control view corridors and ground stories building bulk and mass.

- Vertical encroachment. Structure shall be limited to the following:

- Forty-five (45) feet on sixty (60) foot rights-of-way.

- Eighteen (18) feet on rights-of-way less than thirty (30) feet.

- The encroachment shall be structurally supported entirely from the adjoining private property.

c. All applicable costs for improvements and/or relocation to utilities, sanitary sewer, storm water, and other associated infrastructure improvements as a result of the request shall be the responsibility of the property owner.

d. On street parking displaced as a result of the encroachment shall be provided as public parking spaces within the proposed development and compensation for the removed spaces shall be subject to the established City provisions. The building shall include City's public parking signage on the exterior portions of the building to clearly identify public parking spaces are available within the facility. The total number and location of the signage shall be determined at the time of application review. Any encroachments, construction and penetration into the rights-of-way shall be subject to the following:

- The property owners shall be responsible for all maintenance of all encroachments and property of all surrounding public rights-of-way, including the following: landscaping; (hard and softscape); benches; trash receptacles; irrigation; kiosks; plazas; open spaces; recreational facilities; private streets; and other elements are subject to all the provisions for which the development was approved as may be amended.
- Responsible for liability insurance, local taxes, and the maintenance of the encroachment and/or property.
- In the event that the owner or any assign and successor shall at any time after approval of the site plan fail to maintain the

4/29/22, 11:37 AM

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|    |   |   |                                                                                                                                             |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
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|    |   |   |                                                                                                                                             | <p>areas in reasonable order and condition in accordance with the approval, these regulations, City Code or other applicable local, state and federal requirements, the City shall implement appropriate measures pursuant to applicable City provisions.</p> <p>e. Encroachments and the total amount of encroachment shall require review and approval pursuant to applicable City provisions.</p>                                                                                                                                                                                                                                                                                                                                                           |
| 3. |   | ✓ | <p>Parking requirement exemption for Mediterranean Architectural Design buildings of 1.45 FAR or less (Central Business District only).</p> | <p>Any new building construction or restoration/renovation of a building located in the Central Business District which is designed as Coral Gables Mediterranean Architectural Design as provided for in Article 5-201. and satisfies all other provisions of this Article, may be exempted from off-street parking requirements if the FAR of such building(s) does not exceed 1.45.</p> <p>Property owners, successors or assigns shall be limited to the above use restriction in perpetuity. The above provisions shall be enforced via a restrictive covenant or other acceptable means as determined by the City Attorney, subject to City Attorney review and final approval prior to the issuance of a certificate of occupancy for the building.</p> |
| 4. | ✓ |   | <p>Multi-family residential density bonus for Mediterranean Architectural Design buildings.</p>                                             | <p>A twenty-five (25%) percent residential density bonus may be awarded to the permitted residential density if the proposed building is designed as Coral Gables Mediterranean Architectural Design as provided for in Article 5-201. and satisfies all other provisions of this Article.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |

#### Section 5-202. Coral Gables Mediterranean architecture design.

A. Coral Gables Mediterranean Architecture Design. All applications for development approval shall be required to satisfy all of the following:

1. Include design elements and architectural styles of the following buildings:
  - a. H. George Fink Offices, 2506 Ponce de Leon Boulevard.
  - b. The Colonnade Building, 169 Miracle Mile.
  - c. Douglas Entrance, 800 Douglas Road.
  - d. Coral Gables Elementary School, 105 Minorca Avenue.
  - e. Granada Shops/Charade Restaurant, 2900 Ponce de Leon Boulevard (demolished).
  - f. San Sebastian Apartments, 333 University Drive.
  - g. Coral Gables City Hall, 405 Biltmore Way.
  - h. Biltmore Hotel, 1200 Anastasia Avenue.

## **EXHIBIT E**

4/29/22, 11:43 AM

Print

### **Section 2-406. Design & Innovation District Overlay.**

#### **A. Purpose and applicability.**

1. The purpose of the Design & Innovation District Overlay is to promote high-quality retail and to encourage effective and proper development of the former Industrial Section for local employment in protected residential neighborhoods with the goals, objectives, and policies of the City's Comprehensive Plan.
2. Applicability. The Design & Innovation District Overlay applies to all properties within the area bounded by the following streets: Ponce de Leon Boulevard both sides on the east, Blue Road on the south, both sides of Le Jeune Road (SW 42<sup>nd</sup> Avenue) on the west, and Bird Road (SW 40<sup>th</sup> Street) on the north, as shown on the Zoning Map.
3. The District regulations are established in order to maintain the following objectives:
  - a. Enhance the aesthetic, physical, and environmental character of the District.
  - b. Encourage development and redevelopment of buildings through coordinated design and development standards, including provisions for parking, sidewalk frontage and land use consistent with the vision of high-quality storefronts for showrooms in the Design & Innovation District.
  - c. Promote and encourage pedestrian, bike, and transit activities in the District by promoting the concepts of an urban city center with mixed use development and pedestrian-friendly design alternatives.
  - d. Foster the activation of public areas and generate streets with a consistent design intent regarding, but not limited to, street trees, bike infrastructure, public lighting fixtures, furnishing, sidewalks, crosswalks, or any other elements in the public right of way.
  - e. Generate pride and confidence in the District.
4. Unless otherwise provided in this section, all provisions of applicable underlying zoning district designations affecting individual property in this district shall control use and development.

#### **B. Regulations.**

1. Uses.
  - a. All uses provided in the underlying zoning District shall be permitted. Additional uses may be permitted in the Design & Innovation District Overlay as in Section 3-400 Other Use Restrictions and Section 3-500 Distance Requirements for Certain Uses.
  - b. For MX2 properties in the Design & Innovation District Overlay, fifty (50%) percent of the linear ground floor building frontage shall be shopfronts and include retail sales and services, office, or restaurant, gallery, and showroom uses or public realm land area (e.g., plazas, courtyards, and other public uses).
2. Density.
  - a. There shall be no density limitation in the Design & Innovation District.
3. Setbacks and Stepbacks.

4/29/22, 11:43 AM

Print

- a. Front: Up to forty-five (45) feet in height: none. Above forty-five (45) feet in height, or four (4) stories: a stepback of ten (10) feet.
- b. Side: Interior side up to forty-five (45) feet in height: none. Above forty-five (45) feet in height, or four (4) stories: a stepback of fifteen (15) feet. Side street: Up to forty-five (45) feet in height: none. Above forty-five (45) feet in height, or four (4) stories: a stepback of ten (10) feet.
- c. Rear: Abutting a dedicated alley or street: none. Not abutting dedicated alley or street: ten (10) feet.
- d. Balconies: Cantilevered open balconies may project into the required stepback areas a maximum of six (6) feet.

4. Height.

- a. MX2 Lots in the Design & Innovation District shall be at a maximum height of ninety-seven (97) feet.
- b. Height of architectural elements may exceed the maximum height in the Design & Innovation District by a maximum of twenty-five (25) feet. Ground floor shopfronts shall have a minimum floor height of fifteen (15) feet and a maximum floor height of twenty-five (25) feet.
- c. Design & Innovation District maximum height of habitable space pursuant to Section [2-201](#) with City Commission approval to a maximum of one-hundred and twenty (120) feet and ten (10) stories, provided, that the increased residential ceiling heights enhance the aesthetics of the building and the surrounding area, and does not result in increased density or floor area.
- d. Properties that are adjacent to single-family and duplex residential districts shall be limited to a maximum habitable height of forty-five (45) feet within one hundred (100) feet of the adjacent right-of-way line. Ten (10) additional feet are permitted for rooftop architectural elements that enhance the building's aesthetics and the aesthetics of the surrounding area, and such additional height will not have a negative impact on adjacent residential uses.

5. Architecture.

- a. Section [5-202](#) Coral Gables Mediterranean Architecture is mandatory within the Design & Innovation District.
- b. Ground floor frontage. Ground floor shopfronts shall have a minimum floor height of fifteen (15) feet and a maximum floor height of twenty-five (25) feet.
- c. Arcades are discouraged facing Ponce de Leon Boulevard.

## **EXHIBIT F**

Floor area ratio (FAR) is the ratio of the applicable interior or exterior floor area of a building or buildings on a building site divided by the area of the site, as measured from the interior facing of exterior walls, and shall exclude:

A. The following areas in the ground floor:

1. Electrical rooms / FPL vault room;
2. Fire command room;
3. Fire pump room;
4. Lobbies;
5. Phone / IT room; and
6. Trash room

B. The following areas in all floors:

1. Stairwell;
2. Elevator; and
3. Trash chute

C. Balconies, porches, or stoops, subject to requirement of restrictive covenant prohibiting enclosures;

D. Basements and uninhabitable attics within a pitched roof;

E. Upper volume of courtyards open to the sky.

F. Off-street parking areas.